

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sebastian Saavedra	Team: Squad #01	CCRB Case #: 201810469	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 11/15/2018 8:39 PM	Location of Incident: Over the telephone.	18 Mo. SOL 12/30/2020	Precinct: 50		
Date/Time CV Reported Mon, 12/17/2018 5:35 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 12/17/2018 5:35 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT2 Edward McBride	01256	896139	INT CIS

Officer(s)	Allegation	Investigator Recommendation
A . DT2 Edward McBride	Discourtesy: Detective Edward McBride spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . DT2 Edward McBride	Abuse: Detective Edward McBride threatened § 87(2)(b) with the placement of § 87(2)(b) on a terrorist watch list.	B . Unsubstantiated
C . DT2 Edward McBride	Off. Language: Detective Edward McBride made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	C . Unsubstantiated
D . DT2 Edward McBride	Off. Language: Detective Edward McBride made remarks to § 87(2)(b) based upon ethnicity.	D . Unsubstantiated

Case Summary

On December 17, 2018, § 87(2)(b) filed this complaint on behalf of herself and her § 87(2)(b) old son, § 87(2)(b) during her in person interview for separate CCRB § 87(2)(b)

On November 15, 2018, at approximately 8:39 pm, § 87(2)(b) received a phone call from Detective Edward McBride. Det. McBride yelled at her, “fuck you” (**Allegation A**). Detective McBride threatened to put § 87(2)(b) on a terrorism watch list (**Allegation B**). Det. McBride called § 87(2)(b) an “old bitch” and an “old cunt.” (**Allegation C**). Det. McBride also called § 87(2)(b) a “Russian bitch” and said he hated Russians, and ended the call by saying “I love working with the KGB (**Allegation D**).

No video footage of this incident is available.

Findings and Recommendations

Allegation A – Discourtesy: Detective Edward McBride spoke discourteously to § 87(2)(b)

Allegation B – Abuse of Authority: Detective Edward McBride threatened § 87(2)(b) with the placement of § 87(2)(b) on a terrorist watch list.

Allegation C – Offensive Language: Detective Edward McBride made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation D – Offensive Language: Detective Edward McBride made remarks to § 87(2)(b) based upon ethnicity.

§ 87(2)(b) testified that Det. McBride called her while she was in her residence and identified himself as “McBride” of the “NYPD Brooklyn Terrorism department. Det. McBride yelled at § 87(2)(b) saying “fuck you.” Det. McBride said he could put her son the terrorism watch list and called § 87(2)(b) an “old bitch,” a “Russian bitch,” and an “old cunt” and said he hated Russians. Det. McBride ended the call by saying, “I love working with the KGB” (Board Review 01).

In his testimony, Det. McBride stated that he spoke to § 87(2)(b) over the phone, but denied swearing at § 87(2)(b) or making any remarks based on her gender or ethnicity. He also denied threatening to place her son on a terrorism watch list (Board Review 02).

§ 87(2)(g)

Therefore, it is recommended that allegations **A, B, C, and D** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been involved in four CCRB complaints and has been named as a victim in nine allegations.
 - § 87(2)(b)

- § 87(2)(b) [REDACTED]
- [REDACTED]
- Detective McBride has been a member-of-service for 29 years and has been a subject in 19 CCRB complaints and 40 allegations, of which five were substantiated.
 - Case #9704517 involved substantiated allegations of false arrest, an unspecified threat, and threat of arrest against Detective McBride. The Board recommended charges and the NYPD imposed an unspecified negotiation.
 - Case #9902423 involved a substantiated allegation of use of gun as club. The Board recommended charges and the NYPD closed the complaint as previously adjudicated.
 - Case #201602538 involved a substantiated allegation of a search against Detective McBride. The Board recommended Command Discipline B and the NYPD imposed Command Discipline A.

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] accepted mediation; however, Detective McBride declined to mediate, and thus the complaint was investigated.
- A FOIL request was submitted with the New York City Officer of the Comptroller for any related Notices of Claim and will be added to the case file upon receipt (Board Review 03).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: 1

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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